

**BEFORE THE
FEDERAL MARITIME COMMISSION**

WAN HAI LINES, LTD.)

AND WAN HAI LINES (USA) LTD. –)

POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c))

DOCKET NO. 21-16

JOINT MOTION FOR STAY OF DEADLINES

PENDING SETTLEMENT

Pursuant to the Federal Maritime Commission Rules of Practice and Procedure, 46 C.F.R. § 502.141(h) and the Administrative Law Judge's December 27, 2022 Remand Scheduling Order in this proceeding, the Bureau of Enforcement, Investigations, and Compliance (BEIC, successor to the Bureau of Enforcement) and Respondents Wan Hai Lines, Ltd. and Wan Hai Lines (USA) Ltd. (Wan Hai or Respondents, and together with BEIC, the Parties), submit this joint motion to inform the Chief Administrative Law Judge that the Parties have reached an agreement in principle to settle this matter, and are actively working to prepare the necessary documentation, which the Parties anticipate filing in due course for the Administrative Law Judge's consideration and approval under 46 C.F.R. § 502.72(a)(3).

The Parties have made considerable efforts to reach an agreement in principle that does not violate any law or policy and is free from fraud, duress, undue influence, and mistake. The Parties are mindful that requests to amend the Remand Scheduling Order are not to be taken lightly and considering this factor, as well as the Parties' mutual desire to avoid unnecessary effort and expense in connection with this proceeding, the Parties request that the Administrative Law Judge

suspend the “End of Discovery” deadline until February 24, 2023, and all other deadlines thereafter accordingly, i.e. “BEIC’s brief, findings of fact, and appendix deadline” to March 17, 2023 and so on.

The Parties jointly stipulate to the extension requested herein under 46 C.F.R. § 502.141(l) and currently anticipate filing a joint motion for approval of their pending settlement agreement on or before February 24, 2023.

DATED: February 9, 2023



Joshua P. Stein
Wayne R. Rohde
COZEN O’CONNOR
1200 Nineteenth Street, NW
Suite 300
(202) 463-2504

Respectfully submitted,

Serena Lei-
Peng Tang

Digitally signed by Serena
Lei-Peng Tang
Date: 2023.02.09
09:47:59 -05'00'

Maryanne G. Mundy
Serena L. Tang
Federal Maritime Commission
Bureau of Enforcement, Investigations,
and Compliance
Washington, DC 20036
800 N. Capitol St., N.W.
Ste. 900
Washington, DC 20573
BOE@fmc.gov

CERTIFICATE OF SERVICE

I certify that on February 9, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502:

Serena Lei-
Peng Tang

Digitally signed by Serena
Lei-Peng Tang
Date: 2023.02.09
09:48:24 -05'00'

Maryanne G. Mundy
Serena L. Tang

ATTORNEYS FOR RESPONDENTS:
COZEN O'CONNOR
1200 Nineteenth Street, NW, Suite 300
Washington, DC 20036

Joshua P. Stein (jstein@cozen.com)
Wayne R. Rohde (wrohde@cozen.com)